

EVENT PLANNING AGREEMENT

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This Event Planning Agreement (this "**Agreement**") is entered into as of [EFFECTIVE DATE] (the "**Effective Date**") by and between:

[PLANNER LEGAL NAME], a [STATE] [ENTITY TYPE, e.g. limited liability company] with its principal place of business at [PLANNER ADDRESS] ("**Planner**"); and

[CLIENT NAME], [an individual residing at / a [STATE] [ENTITY TYPE] with its principal place of business at] [CLIENT ADDRESS] ("**Client**").

Planner and Client are each a "**Party**" and together the "**Parties**."

Recitals. Client wishes to engage Planner to plan and coordinate the event described below, and Planner wishes to provide those services, on the terms below. The event is the [EVENT TYPE, e.g. wedding / corporate conference / birthday celebration] scheduled for [EVENT DATE] at [VENUE / LOCATION] (the "**Event**"). In consideration of the mutual promises below, the Parties agree as follows.

1. Scope of Services

1.1 Services. Planner will provide the event-planning and coordination services described in **Exhibit A** (the "**Services**"), which may include concept and design, budget planning, vendor sourcing and coordination, timeline creation, and on-site coordination, with reasonable skill and care.

1.2 Service level. The engagement is for [FULL PLANNING / PARTIAL PLANNING / MONTH-OF (DAY-OF) COORDINATION] as described in Exhibit A.

1.3 Vendor coordination. Planner will recommend and coordinate with vendors but, unless expressly stated, contracts with vendors are between Client and each vendor. Client is responsible for vendor fees and for reviewing and signing vendor contracts.

1.4 Out of scope. Services not listed in Exhibit A, including catering, floral, photography, venue rental, and similar third-party services, are not included unless Planner expressly agrees to provide or subcontract them.

2. Client Responsibilities

2.1 Decisions and approvals. Client will make timely decisions, provide approvals, and respond to requests so Planner can meet deadlines and the Event date.

2.2 Budget. Client will set and fund the Event budget. Planner will plan within the budget Client approves and will notify Client before commitments that would exceed it.

2.3 Final authority. Client retains final decision-making authority over the Event. Planner advises and coordinates but does not guarantee any vendor's performance.

2.4 Information accuracy. Client will provide accurate guest counts, schedules, and contact information, and will promptly notify Planner of changes.

3. Fees, Deposit, and Payment

3.1 Fees. Client will pay Planner **[FLAT FEE / PERCENTAGE OF BUDGET / HOURLY AT [RATE]]** as described in Exhibit A, in **[CURRENCY]**, exclusive of taxes.

3.2 Retainer/deposit. A non-refundable retainer of **[AMOUNT OR PERCENTAGE]** is due on signing to reserve the Event date and begin work. The retainer is applied to the total fee. Treatment of deposits varies by local law; the non-refundable characterization is subject to applicable consumer-protection law.

3.3 Payment schedule. The balance is due as follows: **[SCHEDULE, e.g. 50% at signing, 25% at [MILESTONE], 25% [NUMBER] days before the Event]**.

3.4 Expenses and vendor payments. Client will pay vendors directly or reimburse Planner for pre-approved expenses Planner advances. Planner is not responsible for vendor deposits or balances Client fails to pay.

3.5 Late payment. Undisputed amounts not paid when due accrue interest at the lesser of **[e.g. 1.5%]** per month or the maximum rate permitted by applicable law, and Planner may suspend Services on **[NUMBER]** days' written notice.

4. Changes, Postponement, and Cancellation

4.1 Changes. Material changes to the Event scope, date, location, or guest count may change the fee and timeline and require a written change order.

4.2 Postponement. If Client postpones the Event, Planner will make reasonable efforts to accommodate a new date subject to availability. A postponement fee of **[AMOUNT]** may apply, and vendor rebooking terms are governed by each vendor's contract.

4.3 Cancellation by Client. If Client cancels, the retainer is forfeited and Client remains responsible for fees for Services performed and for any non-refundable vendor commitments made on Client's behalf, subject to applicable law.

4.4 Cancellation by Planner. If Planner cannot perform due to circumstances within its control, Planner will refund fees paid for Services not yet performed and will reasonably assist in transitioning to a replacement planner.

5. Force Majeure and Inclement Weather

5.1 Force majeure. Neither Party is liable for delay or failure caused by events beyond its reasonable control, including natural disasters, government orders, public-health emergencies, venue closure, or supplier failure, provided it gives prompt notice and uses reasonable efforts to mitigate.

5.2 Weather and outdoor events. For outdoor or weather-dependent elements, Client is responsible for backup arrangements. Planner is not liable for weather conditions or their effect on the Event.

5.3 Effect. A force-majeure event does not relieve Client of payment for Services already performed or for non-refundable vendor commitments.

6. Vendors and Subcontractors

6.1 Recommendations. Planner's vendor recommendations are made in good faith. Planner does not warrant any vendor's performance, conduct, or pricing.

6.2 Subcontractors. Planner may use staff or subcontractors to perform the Services and remains responsible for their work under this Agreement.

6.3 Direct contracts. Where Client contracts directly with a vendor, that vendor's contract governs the vendor relationship, and Client is responsible for its terms.

7. Liability, Indemnification, and Insurance

7.1 Exclusion of indirect damages. Neither Party is liable for indirect, incidental, special, consequential, or punitive damages, even if advised of the possibility.

7.2 Liability cap. Except for the excluded matters in Section 7.4, Planner's total aggregate liability arising out of or related to this Agreement will not exceed the total fees paid by Client to Planner.

7.3 Indemnification. Client will defend and indemnify Planner against third-party claims arising from the Event, Client's conduct, or its guests' conduct, except to the extent caused by Planner's gross negligence or willful misconduct.

7.4 Exclusions from limits. The limitations above do not apply to a Party's gross negligence, willful misconduct, or liability that cannot be limited under applicable law.

7.5 Insurance. Each Party will maintain insurance appropriate to its role as described in Exhibit A, and will provide proof on request.

8. Media, Confidentiality, and Cancellation Rights

8.1 Photography and promotion. Planner may use non-confidential photographs of the Event in its portfolio and marketing unless Client opts out in writing.

8.2 Confidentiality. Each Party will keep the other's non-public information confidential and use it only to perform under this Agreement.

8.3 Guest data. Planner will use guest information only to coordinate the Event and will not sell or misuse it.

9. General Provisions

9.1 Independent contractor. Planner is an independent contractor. Nothing creates a partnership, joint venture, agency, or employment relationship.

9.2 Governing law and venue. This Agreement is governed by the laws of the State of [STATE], without regard to its conflict-of-laws rules. The Parties submit to the exclusive jurisdiction of the state and federal courts located in [COUNTY, STATE].

9.3 Dispute resolution. Before filing suit, the Parties will attempt in good faith to resolve any dispute through direct discussion within [NUMBER] days of written notice. [OPTIONAL: mediation or arbitration clause, discuss with counsel.]

9.4 Notices. Notices must be in writing and sent to the addresses above (or as updated in writing) and are effective on receipt.

9.5 Entire agreement; amendment. This Agreement, together with Exhibit A, is the entire agreement between the Parties on its subject and supersedes prior discussions. It may be amended only by a writing signed by both

Parties.

9.6 **Severability and waiver.** If any provision is unenforceable, the rest remains in effect. A Party's failure to enforce a provision is not a waiver.

9.7 **Counterparts and electronic signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original and all of which together form one agreement.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PLANNER

CLIENT

Signature: _____

Signature: _____

Printed name: **[NAME]**

Printed name: **[NAME]**

Title: **[TITLE]**

Title: **[TITLE / N/A]**

Date: _____

Date: _____

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